

HOUSE No. 2487

The Commonwealth of Massachusetts

PRESENTED BY:

Marc T. Lombardo, (BY REQUEST)

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to dental service quotes.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Joan Martorella</i>	<i>11 Satuckett Lane Billerica MA 01821</i>	<i>1/17/2025</i>

HOUSE No. 2487

By Representative Lombardo of Billerica (by request), a petition (accompanied by bill, House, No. 2487) of Joan Martorella relative to dental service quotes. Public Health.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2232 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to dental service quotes.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 111 of the General Laws is hereby amended by inserting after section 228 the
2 following section:-

3 Section 228½. (a) As used in this section, the following terms shall, unless the context
4 clearly requires otherwise, have the following meanings:-

5 “Board”, the board of registration in dentistry established pursuant to section 19 of
6 chapter 13.

7 “Dental services”, diagnostic, preventative or corrective treatment of the teeth and
8 associated structures of the oral cavity, including, but not limited to, oral surgery and the
9 provision of orthodontia and prostheses.

“Dental services provider”, a provider of dental services, including, but not limited to, a dentist registered by the board pursuant to section 45 of chapter 112, a dental hygienist registered by the board pursuant to section 51 of said chapter 112, a dental assistant register by the board pursuant to section 51½ of said chapter 112 or an oral and maxillofacial surgeon certified by the American Board of Oral and Maxillofacial Surgery.

(b) Upon request by a patient or prospective patient, a dental services provider shall provide a quote of the costs associated with any dental services prior to performing any dental services; provided, however, that if a patient or prospective patient schedules a series of procedures or services as part of a continued course of treatment, the patient or prospective patient may waive the requirement to receive such quote from the dental services provider for that course of treatment.

(c) If a dental services provider completes any dental services without providing the patient with a quote pursuant to subsection (b), the patient may file a complaint with the board. Upon receipt of a complaint pursuant to this section, the board shall conduct an investigation into whether the completed dental services were medically necessary. If, as a result of such investigation, the board has reasonable cause to believe that the completed dental services were not medically necessary, it shall file a written report of the violation with the attorney general who shall, within 3 months following receipt of such report, notify the board in writing of the action taken with respect to such violation.